

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 20, 2026
8:30 AM/1:30 PM

5. BROOKE LOREE V. JASON SILVA

26FL0409

On April 28, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders as well as child support and attorney's fees. She filed an Income and Expense Declaration on May 1st and another one on May 5th. On May 5th she also filed a Declaration in Support of Family Code § 2030 Attorney's Fees. All required documents were personally served on May 19th.

The parties attended Child Custody Recommending Counseling (CCRC) on May 27, 2026. They were unable to reach agreements therefore, a report with recommendations was prepared on July 21, 2026. It was mailed to the parties on July 22nd.

Respondent filed and served his Responsive Declaration to Request for Order or an Income and Expense Declaration on August 14, 2026. The court finds these to be late filed pursuant to Civil Procedure section 1005(b) which states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, "[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12." Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made August 7th the last day for filing the responsive declaration and the Income and Expense Declaration, therefore, they are late filed and have not been considered by the court.

Petitioner is requesting an order for jurisdiction over the child to be in El Dorado County. She further requests sole legal and sole physical custody of the minor. She asks that she be able to supervise any visits between the minor and Respondent. She is also requesting guideline child support and attorney's fees in the amount of \$10,500.

According to Petitioner a Uniform Parentage Act Petition has already been filed in Sacramento County along with an RFO. Petitioner has not provided the court with any information regarding the status of the Sacramento case (i.e. whether it has been served, if Petitioner has filed an answer, if any orders have been made, etc.) The parties are ordered to appear to provide the court with additional information regarding the Sacramento matter.

The parties are ordered to bring with them their respective proposed Xspouse reports.

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TENTATIVE RULING #5: THE PARTIES ARE ORDERED TO APPEAR TO PROVIDE THE COURT WITH ADDITIONAL INFORMATION REGARDING THE SACRAMENTO MATTER. THE PARTIES ARE ORDERED TO BRING WITH THEM THEIR RESPECTIVE PROPOSED XSPOUSE REPORTS.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.